

Gee Pee Cycle Balls Pvt. Ltd. v. State of U.P.

Allahabad High Court · Division Bench · 2 March 2017 · Writ-C No. 9076 of 2017 · **Writ disposed; pending 6.5 objections to be considered; coercive action stayed.**

HEADNOTE

Where objections under clause 6.5 of the U.P. Electricity Supply Code, 2005 were already pending, the High Court recorded the consumer's undertaking to complete the mandated hearing formalities within fifteen days, directed the authority to consider the objections and pass orders within four weeks of compliance, and stayed coercive action until the objections are decided. The assessment was not examined on merits.

FACTUAL SUMMARY

Gee Pee Cycle Balls Pvt. Ltd. filed a writ petition in the Allahabad High Court against the State of U.P. and two electricity authorities. Counsel submitted that the company had already raised objections under clause 6.5 of the U.P. Electricity Supply Code, 2005, which remained under consideration, and undertook to complete every formality required for hearing those objections within fifteen days. The Division Bench recorded that undertaking and disposed of the petition with directions on consideration of the objections and coercive action.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

assessment-objections-consideration-and-stay

HOLDING

Where a consumer has already raised objections under clause 6.5 of the U.P. Electricity Supply Code, 2005 and undertakes to complete the formalities mandated for hearing those objections, the assessing authority is to consider the objections and pass appropriate orders within four weeks of compliance; if the consumer so complies, no coercive action is to be taken until the objections are decided. The Court does not decide the objections on merits. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE CLAUSE 6.5 OBJECTIONS AND THE UNDERLYING ASSESSMENT

The Court only directed time-bound consideration and stayed coercive action pending that decision. ¶ 1